

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4490

By: Townley of the House

and

Weaver of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to maternal care; creating the
12 Oklahoma Families Thriving Everywhere Now (OFTEN)
13 Revolving Fund; stating the purpose; providing for
14 codification; and providing an effective date.

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16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1-234.2 of Title 63, unless
19 there is created a duplication in numbering, reads as follows:

20 A. There is hereby created in the State Treasury a revolving
21 fund for the State Department of Health to be designated the
22 "Oklahoma Families Thriving Everywhere Now (OFTEN) Revolving Fund".
23 The fund shall be a continuing fund, not subject to fiscal year
24 limitations, and shall consist of all monies received by the State

1 Department of Health from state-appropriated funds, federal funds,
2 donations, grants, and contributions from any public or private
3 source and designated for the purpose set forth in this act. All
4 monies accruing to the credit of said fund are hereby appropriated
5 and may be budgeted and expended by the State Department of Health
6 for the purpose provided in this act. Expenditures from said fund
7 shall be made upon warrants issued by the State Treasurer against
8 claims filed as prescribed by law with the Director of the Office of
9 Management and Enterprise Services for approval and payment.

10 The program shall include operation of a telecare pregnancy and
11 parenting support program and a maternal health component to provide
12 community outreach, consultations, and care coordination for women
13 experiencing under-supported, high-risk pregnancies, or both, and
14 for parents of young children. The program is designed to:

- 15 1. Encourage healthy childbirth;
- 16 2. Support childbirth and adoption as alternatives to abortion;
- 17 3. Promote stable family formation;
- 18 4. Assist in establishing successful parenting techniques;
- 19 5. Increase the economic self-sufficiency of families; and
- 20 6. Improve maternal and infant health outcomes and reduce
21 health disparities, including disparities among black and other
22 minority mothers who experience higher rates of preterm birth, low
23 birth weight, and maternal morbidity.

1 B. Program services shall be delivered primarily through
2 electronic means, including telephone, secured video, text, and
3 other remote technologies, and coordinated with in-person pregnancy
4 resource centers, community-based organizations, health care
5 providers, and social service agencies physically located in the
6 State of Oklahoma.

7 SECTION 2. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1-234.3 of Title 63, unless
9 there is created a duplication in numbering, reads as follows:

10 A. To the extent appropriations are available, the State
11 Department of Health shall enter one or more contracts with eligible
12 public or private nonprofit organizations to facilitate operation of
13 the telecare support network and associated maternal health program.

14 B. Services may include, but are not limited to:

15 1. Outreach to at-risk populations eligible for the Program,
16 conducted exclusively through online and digital marketing
17 strategies, including websites, search engine marketing, social
18 media, text messaging, email, and other Internet-based outreach
19 methods;

20 2. Screening for maternal and infant risk factors, including
21 lack of insurance, age under twenty (20) or over thirty-five (35),
22 low educational attainment, prior adverse pregnancy outcomes,
23 chronic medical conditions, and behavioral health risk factors;

1 3. Development of individualized care plans for program
2 participants;

3 4. Consultations, supports, social services case management,
4 referrals, and care coordination to address medical, behavioral
5 health, social, educational, economic, environmental, and parenting
6 needs throughout pregnancy and the postpartum period;

7 5. Education and support related to preventive medical care,
8 environmental risks, nutrition, smoking, alcohol and substance use
9 cessation, and other factors that contribute to safer pregnancies
10 and healthier infants;

11 6. Assistance in applying for and connecting to state and
12 federal benefits programs and local charitable resources;

13 7. Behavioral health supports, including referrals for
14 counseling or therapy to address perinatal mood and anxiety
15 disorders;

16 8. Coordination of appointments with in-person pregnancy
17 resource centers or similar agencies that provide counseling,
18 ultrasounds, pregnancy tests, prenatal and parenting education,
19 material support, and adoption information; and

20 9. Tracking and support to encourage attendance at prenatal
21 care, postpartum follow-up visits, and pediatric well-child visits.

22 C. Services supported by this program shall be non-medical in
23 nature and shall not include the direct provision of clinical
24 medical services or the prescription of medications. Nothing in

1 this subsection prohibits program personnel from providing medically
2 accurate, pregnancy-related medical information or from encouraging
3 and facilitating timely prenatal, postpartum, and pediatric medical
4 care by licensed health professionals.

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1-234.4 of Title 63, unless
7 there is created a duplication in numbering, reads as follows:

8 A. In order to receive funding under this act, an entity shall:

9 1. Be a public or private nonprofit organization;

10 2. Have the capacity and provide assurances to deliver services
11 primarily through electronic means as described in Section 1 of this
12 act;

13 3. Acknowledge and certify that the entity:

14 a. does not perform, refer for, or assist with the
15 elective termination of a pregnancy, and

16 b. does not set appointments with or refer women or
17 parents to any entity that performs or recommends
18 elective termination of a pregnancy;

19 4. Allow and agree that:

20 a. the State Department of Health personnel may conduct
21 annual, and, at the Department's discretion,
22 additional, programmatic contract reviews, including
23 on-site or virtual monitoring for compliance, and
24

1 b. the entity grants to the Office of the State Auditor
2 and Inspector, the Department, the federal government,
3 and any other authorized representatives the right to
4 audit, inspect, and review all books and records
5 pertaining to services rendered under their contract.

6 B. Eligibility for services is limited to Oklahoma residents
7 who, at the time of initial contact, are pregnant or the biological
8 parent of an unborn child.

9 C. Any program participant who voluntarily terminates a
10 pregnancy may be eligible to continue receiving non-medical support
11 and parenting-related services through the Program for a period not
12 to exceed six (6) months from the date of pregnancy termination, as
13 determined by Department rule.

14 SECTION 4. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1-234.5 of Title 63, unless
16 there is created a duplication in numbering, reads as follows:

17 A. Contractors shall collect and report to the State Department
18 of Health de-identified data necessary to evaluate program
19 performance, including, to the extent feasible:

- 20 1. Participant demographic and risk characteristics;
- 21 2. Referrals to state and federal programs;
- 22 3. Service utilization and engagement, including behavioral
23 health and nutrition services;

1 4. Maternal outcomes such as prenatal care initiation,
2 postpartum visit completion, and reported postpartum depression; and

3 5. Infant outcomes such as gestational age at birth, birth
4 weight, NICU utilization, and attendance at initial well-child
5 visits.

6 B. The Department shall, on or before December 31 of each year
7 in which funds are expended under this act, submit a report to the
8 Governor, the President Pro Tempore of the Oklahoma State Senate,
9 and the Speaker of the Oklahoma House of Representatives summarizing
10 program implementation, utilization, and outcomes, and offering
11 recommendations regarding continuation, expansion, or modification
12 of the program.

13 SECTION 5. This act shall become effective November 1, 2026.

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15 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
16 03/05/2026 - DO PASS, As Amended and Coauthored.